



File No.: EXP202313227

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by ASYMECO, S.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 13, 2024, and based on the following

FACTS

FIRST: On December 13, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202313227, by virtue of which ASYMECO, S.A. was imposed:

- For a violation of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €2,500 (two thousand five hundred euros).
- For a violation of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, a fine of €2,500 (two thousand five hundred euros).

Said resolution, which was notified to the appellant on December 13, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00505/2023, the following was recorded:

“FIRST: In the mobile screen image of the WhatsApp application, dated June 13, 2022, contained in the file (page 11), the following message appears addressed to the contact “A.A.A.”, with the following text:

“... regarding using the mobile as I mentioned the other day when talking about another client, I do not want to use my personal mobile to have conversations with you about clients.

The Asymeco mobile is available during my working hours, so it is the best way we have to send you messages and for you to see them before by email. It is true that it is not the fastest way to receive them.”

SECOND: In the mobile screen image of the WhatsApp application, dated June 29, 2022, contained in the file (page 12), it is verified that a contact was shared by “A.A.A.”, which the complainant claims is from a client of the consultancy.

THIRD: On July 22, 2022, an email was sent by the complainant from the address (...)@asymeco.com to “Asymeco Madrid” “Laboral (...)”, with the subject “(...)” and the following text:

“[...]

What cannot be is that after notifying you in writing SEVERAL TIMES and CLEARLY that MY PHONE and my WhatsApp are PERSONAL AND PRIVATE and that I do not want to use them for conversations with you about clients, AGAIN you send me messages about clients and expect me to respond

[...]

Or, if you are interested, the company can provide me with a company mobile with its own WhatsApp or Telegram account or whichever the company considers...”.

FOURTH: In the mobile screen image of the WhatsApp application, dated April 28, 2023, contained in the file (page 14), it is confirmed that three PDF documents named “INITIATION OF SANCTIONING FILE...” containing personal data of a client of ASYMECO were sent to the complainant from the contact “A.A.A.”.

Subsequently, there is a response from the complainant to the sending of said documents with the following text:

“I have already told you several times that you should not send me client data to my personal phone. I need to know why you keep doing this.

I have responded to this via the ASYMECO email.”

In response to this message, "A.A.A." sends an audio message whose transcribed content has been provided by the complainant along with the complaint:

"B.B.B., well, I didn't remember when you had to go to the doctor. In any case, I do not send you client data, these are important things for us. Just as you address my mobile for your matters, I can also address yours for work-related issues, I have told you this many times. You handle the phone at work, okay, with the work Wi-Fi. Therefore, it is an important means of communication. For you and for us. And not only for what is convenient for you. Therefore, let's have a little bit of normality, a little bit of reciprocity. Not just for what we want.

[...]

In response to this message, the complainant again opposes "that you use my private phone as a work tool."

FIFTH: According to the images provided by the complainant, on July 17, 2023, and August 10, 2023, the contact "A.A.A." sent personal data of the company's clients to the complainant's mobile phone via the WhatsApp application, who states that he has addressed this issue with the manager of ASYMECO.

SIXTH: On October 10, 2023, the complainant terminated the employment relationship with ASYMECO, according to the resolution of recognition of discharge from the Treasury.

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General Social Security, submitted by ASYMECO attached to its allegations regarding the initiation agreement.

SEVENTH: On November 9, 2023, the claiming party informs this Agency that a person identifying as a worker of ASYMECO sent them a message on November 7, 2023, to inquire about "professional details related to a client"; as proof, they provide an image of a WhatsApp conversation.

EIGHTH: On March 12, 2024, ASYMECO submitted allegations to the initiation agreement stating that it has used the private mobile number of the claiming party to send communications containing client data from ASYMECO, asserting that "communication between them is perfectly valid and furthermore understands that (...) the worker has a general obligation of confidentiality regarding the processing of client data."

THIRD: The appealing party submitted a request for reconsideration on January 7, 2025, to this Spanish Agency for Data Protection, basing it fundamentally on the fact that the claiming party had given consent for the processing in question, noting that it is customary and routine in the usual work practice for workers to communicate with the company via WhatsApp, which is an accepted communication and work system between the parties, arguing that it contradicts the actions of the claiming party itself, as it is they who initiate conversations with the employer at their request and outside of working hours, without having suffered any harm.

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appealing party, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in the Legal Grounds Third of the contested resolution, and consequently, the

response provided by this Agency is reproduced below:

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“FIRST.- We consider the content of our previous allegations to be reproduced as it is fully valid and applicable, and to avoid unnecessary repetitions.”

Consequently, we proceed to respond to what is included in the response of the defendant party to the initial transfer of the claim by this Agency:

- “FIRST.” According to ASYMECO, WhatsApp is a work tool and a usual communication channel between the company and the workers, and there was prior consent from the worker to use this communication channel with the company; it does not involve their inclusion in a WhatsApp group, which would indeed have required their consent. No communications have been sent outside of working hours, the worker has not been required to contact any client through their mobile device or through a social network, communications with clients are conducted via the company’s corporate email and by phone (from the company phone). At no time has there been any sanction or reproach from the company to the claimant if any communication has not been answered, and lastly, the worker’s right to disconnection or rest has not been violated. As proof of all this, ASYMECO states that all workers are witnesses to the above and that the WhatsApp histories of all workers are available to this agency.

In response to all these allegations, it should be noted regarding the infringement of Article 6.1 of the GDPR that ASYMECO has not demonstrated that, once the employment relationship was terminated, it had the consent of the claimant to use their private phone number for the purpose of contacting them.

Regarding the infringement of Article 32 of the GDPR, whether the communications occurred during working hours or not, as well as the existence or non-existence of the claimant’s consent, are not determinative of administrative responsibility, since the lack of appropriate security measures on the claimant’s private device occurs independently of the time at which the personal data of ASYMECO’s clients were sent or whether consent had been granted.

Contrary to what ASYMECO has stated, the messages reproduced in the Established Facts clearly show the claimant’s opposition to their private number being used as a usual communication channel with the company, therefore, it is also not “accepted by both parties by mutual agreement for such communication.”

Regarding the fact that the claimant has not had to use their personal phone as a means of communication with ASYMECO’s clients, this circumstance is not raised by the claimant, nor is it considered as an infringement in this procedure. Similarly, the absence of reproach from ASYMECO to the worker for not having answered any communication must be addressed.

Finally, ASYMECO points out that all workers are witnesses to the above, but it does not provide, not even any testimony from other workers, but rather any document that proves the consent regarding the use of their personal phone granted by the workers prior to the start of the employment relationship.

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For all the above reasons, the present allegation is dismissed.

- “SECOND.- LONG-STANDING CUSTOM OF THE PROFESSIONAL OFFICE BETWEEN EMPLOYEES AND EMPLOYER”

In response to this argument, it should be noted that the company’s activities involving the processing of personal data must comply with the provisions of the GDPR, therefore reasons of “economy,” “custom,” or “agility” in communications must be rejected.

For all the above reasons, the present allegation is dismissed.

- "THIRD.- THE CLAIMANT ACTS AGAINST THEIR OWN ACTIONS"

The WhatsApp conversations that ASYMECO reproduces in this allegation were already presented by the claiming party along with the complaint (page 5 of the file). From the email "(...)"@asymeco.com," a message was sent to the claiming party indicating that they should contact the relevant company representative by phone, and that it was not appropriate to use corporate email for "personal matters," when what the claiming party raised were issues related to the delay in the payment of their salary, which can be considered a matter related to the functioning of the company.

For all the above reasons, the present allegation is dismissed.

- "FOURTH.- RETALIATION/ CLAIMANT'S EXPUREO MOBILE/ LABOR CONFLICT"

According to ASYMECO, the complaint originates from a conflict generated exclusively by the claiming party, and this avenue is being used by the worker for undoubtedly spurious purposes, providing conversations with the claiming party regarding their professional performance and working conditions. From reading the facts presented by the claiming party in their complaint, as well as the conversations held with ASYMECO during July 2022 and August 2023, it can be observed that the claiming party has made a series of reasoned warnings about the use of an application through which third-party data was sent to a private mobile phone, without knowing the security measures of the device, such as, for example, who may have access to it. The substantiated nature of such facts renders irrelevant the allegation concerning the reasons for which the claiming party filed the complaint, and issues such as the evaluation of professional performance or the existence of any type of conflict between the company and the worker regarding the latter's working conditions should not be considered. In summary, it can be said that it is not the responsibility of this Agency to analyze circumstances that are unrelated to the facts that are the subject of the present procedure for which the claiming party filed the complaint.

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For all the above reasons, the present allegation is dismissed.

- "FIFTH.- THERE IS NO VIOLATION OF DATA PROTECTION LAW"

According to ASYMECO, "No message has been disseminated by the employer because they are the first interested party in the confidentiality of conversations between employees and themselves, unless the claimant has done so, a circumstance we are unaware of. The claimant has suffered no harm." In response to this allegation, it should be noted that the initiation agreement duly substantiated the two alleged infringements committed by ASYMECO, neither of which refers to a breach of confidentiality of customer data, but the lack of security measures when sending personal data of ASYMECO's customers to a private device, where it is unknown whether the measures that a corporate electronic device should have are in place, primarily establishing a security policy, as well as a series of tools, such as user authentication systems, antivirus, firewalls, and the ability to block access to our information.

On the other hand, ASYMECO contacted the claiming party once their employment relationship with ASYMECO had ended, thus lacking the legal basis to consider this processing lawful, as required by Article 6 of the GDPR.

For all the above reasons, the present allegation is dismissed.

"SECOND.- The statements contained in the resolution issued are erroneous"

ASYMECO states that in the resolution "It is noted that there was no valid employment contract between Asymeco and the claiming party that determines the lawfulness of the processing nor the consent to contact them once the employment relationship had ended. Well, a copy of the employment contract between both parties is attached."

In response to this argument, it should be noted that what is stated in the initiation agreement is that there was no valid (employment) contract between ASYMECO and the claiming party whose execution determined the lawfulness of the processing, since communication occurred on November 9, 2023,

when the employment relationship, according to ASYMECO itself, was terminated on October 10, 2023, due to the voluntary resignation of the claiming party.

For all the above reasons, the present allegation is dismissed.

“THIRD.- The claimant was the one who initially started communications through their own phone and using the WhatsApp application, as evidenced by the screenshots initially provided by this party.”

In response to this allegation, from the messages provided by both the claiming party and ASYMECO, in no case is it proven that the claiming party...

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The claimant has sent personal data of ASYMECO's clients via WhatsApp. On the contrary, from the messages in the file, it can be observed the multiple warnings made by the claimant to ASYMECO regarding the inconvenience of sharing personal data of the company's clients through the WhatsApp application linked to their private number.

For all the above reasons, this allegation is dismissed.

[...]

ASYMECO begins its first allegation by referencing the principle of data minimization (Article 5,1,c of the GDPR), which is not the subject of accusation in the present procedure, and reiterates its previous allegations, which have already been answered, regarding the non-consensual inclusion in any WhatsApp group, but rather of usual communications that were initiated by the claimant for their own purposes and used when it became essential to expedite work due to the office being located in a different locality from their residence.

As a second allegation, the respondent invokes a precedent followed by the AEPD, marked with the number (...), in which the resolution was to archive the proceedings aimed at the inclusion of the employee in two WhatsApp groups. In this regard, it emphasizes that the present case only concerns the transfer to the claimant of a client's complaint, being this relevant information limited to purposes that do not harm the claimant or the client, since the claimant, as an employee of the respondent, is obliged to maintain due confidentiality.

Thirdly, ASYMECO insists on pointing out that this type of communication to the personal phone of employees is a common practice of the company consented to by all of them, to facilitate service and their work, with minimally necessary data. And it reiterates once again that none of the workers have made any complaints for this reason and are willing to testify that they accepted these communications, which have been used correctly and without disseminating third-party data to their detriment.

However, it is deemed appropriate to highlight once again that the present case has nothing to do with the incorporation of the claimant's personal phone into a WhatsApp group, so the issues analyzed in the precedent that ASYMECO invokes are not similar to those that motivate the infringements now attributed.

On the other hand, it should be clarified that the precedent indicated by ASYMECO corresponds to number (...) and not to the one mentioned in its written allegations, previously noted.

For all the above reasons, this allegation is dismissed.

The appeal for reconsideration also raises the following arguments:

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“CHALLENGE AND ASSESSMENT OF THE DOCUMENTATION PROVIDED BY THE CLAIMANT”

ASYMECO merely states that the images of the WhatsApp conversations alone do not prove the conversation with the claimant. However, it limits itself to stating this generically, without demonstrating

in what way they would be inaccurate or providing any evidence regarding the falsity of the conversations. Therefore, the evidence provided by the claimant must be considered valid. For all the above reasons, this allegation is dismissed.

“ABSENCE OF ANY HARM”

The fact that the claimant has not suffered a specific harm does not exempt from the obligation to comply with Article 6.1 of the GDPR. Data protection is a fundamental right that does not depend on the damage caused, but on the existence of a legitimate basis for processing. Therefore, any processing of data without a valid legal basis is unlawful and subject to sanction, even in the absence of material or immaterial damages.

For all the above reasons, this allegation is dismissed.

“AGGRAVATING CIRCUMSTANCE”

ASYMECO generically opposes the aggravating factors applied to its infringing conduct: “the aggravating factors do not occur in the current case,” without further motivation to refute the existence of such aggravating factors. Only, regarding the aggravating factor of the link of the activity of this company, it states that “it should be noted that our professional activity is not specifically dedicated to the processing of data.”

In response to this argument, it should be noted that the application of the aggravating factor related to “the link of the infringer’s activity with the processing of personal data” is justified because ASYMECO engages in business activities that routinely involve the processing of personal data, both of its clients and of their employees, so it must have sufficient experience and appropriate technical and organizational measures to comply with data protection regulations. This aggravating factor is not limited, as ASYMECO intends, to those companies that are specifically dedicated to data protection, but rather to those that routinely carry out personal data processing.

For all the above reasons, this allegation is dismissed.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

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IV

Late Resolution

Due to operational reasons of the administrative body, therefore not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having seen the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by ASYMECO, S.A. against the resolution of this Spanish Agency for Data Protection issued on December 13, 2024, in file EXP202313227.

SECOND: TO NOTIFY this resolution to ASYMECO, S.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this

resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension concluded.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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